DRY FLY TRADING (PRIVATE) LIMITED
and
TEFCO FINANCE (PRIVATE) LIMITED
versus
LYNNET NJAMBI
and
RUSS ZVIDZAI MTANDWA
and
THE SHERIFF FOR ZIMBABWE

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 29 July 2026

Unopposed Application

S.B Johns for the applicants

MAMBARA J:

[1] This matter came before me on the unopposed motion roll. Had one looked only at the absence of opposition, one might have been tempted to grant the draft order as framed. That would, in my view, have been a serious misdirection. The application raises deep questions of civil procedure, suretyship, execution, co-ownership, and the law of real security over immovable property. An unopposed roll is not a conveyor belt. The court remains bound to satisfy itself that the order sought is competent in law.

[2] The material facts appear from the record. The applicants obtained a provisional-sentence judgment under case number HCH 4171/24 against one Leighton Innocent Mutandwa alone, in the amount of USD 270, 271.00, with interest and costs. That judgment still stands. The present respondents were not parties to that litigation, and no judgment was entered against them. The record further shows that the respondents, together with Mutandwa, are registered co-owners in equal undivided shares of Stand 5893 Masvingo Township of Fort Victoria Township under Deed of Transfer No. 6146/2022, and that on 15 February 2024 each respondent executed an affidavit purporting to authorize the use of the

stand as "collateral" for Mutandwa's debt to the applicants. The sheriff thereafter proceeded only against Mutandwa's undivided share.

[3] The applicants now seek a declarator that those affidavits are "valid and binding undertakings," that the respondents thereby subjected their respective shares to collateral security for Mutandwa's debt, and that the sheriff may attach and sell those shares in execution. The central questions are therefore these: first, whether persons who were not parties to the provisional-sentence judgment can be made answerable to that judgment through later affidavits; second, whether those affidavits validly constituted the respondents as sureties or co-principal debtors; third, whether they created an executable security right over immovable property; and fourth, whether s 14 of the High Court Act may be used to declare and perfect such rights.

[4] Section 14 of the High Court Act empowers this Court, in its discretion and at the instance of an interested person, to determine an existing, future, or contingent right or obligation. The jurisdiction is broad, but it is not at large. Zimbabwean authority has long held that the applicant must demonstrate a direct and substantial interest in a legal right or obligation, and that the Court will not answer abstract, academic, or hypothetical questions. A declaratory order resolves the existence of a legal right or obligation; it does not create one out of nothing.

[5] I accept, without difficulty, that the applicants are "interested persons" in the commercial sense. They are unpaid judgment creditors. But that is only the first step. The critical enquiry is whether the subject of the declaration they seek is in truth an existing, future, or contingent legal right known to our law. On the facts before me, it is not. What the applicants possess is a judgment against Mutandwa and some separate affidavits by two co-owners. The law does not permit the Court to collapse those two things into a single executable security package merely because it might be convenient to do so.

[6] I deal first with the judgment. The provisional-sentence order runs against Mutandwa only. The respondents were not cited, did not defend, and are not judgment debtors. It follows that they cannot become bound by that judgment merely because they later stated, in affidavits, that they consented to the use of their property as "collateral." A judgment in personam binds those who were parties to the proceedings and those who fall within recognized exceptions. It does not bind strangers through association, acquiescence, or moral alignment. The principle is fundamental to Anglo-American adjudication and is powerfully

stated in *Hansberry* v *Lee*, 311 U.S. 32 (1940) and *Taylor* v *Sturgell*, 553 U.S. 880 (2008). There is no pleaded basis here for any recognized exception of non-party preclusion.

[7] That conclusion also accords with local procedural notions. Everyone whose legal interests may be affected by litigation must be joined and given a proper opportunity to be heard. The point is not a technicality. It is a condition of legitimacy in adjudication. Zimbabwean and South African joinder cases alike insist upon a direct and substantial interest and the need to avoid orders prejudicing absent parties or converting them into liable persons without due process.

[8] The applicants' argument is in substance that, although the respondents were not parties to the provisional-sentence suit, their affidavits made them co-principal debtors and thereby rendered their shares executable. That submission misconceives the law of suretyship. A suretyship is an accessory obligation. It is a contract between creditor and surety under which the surety undertakes to answer for the debt of the principal debtor if the principal debtor does not perform. The phrase "co-principal debtor" does not destroy that accessory quality. The South African Supreme Court of Appeal in *Liberty Group Ltd* v *Illman* [2020] ZASCA 38; 2020 (5) SA 397 (SCA) reaffirmed that a surety who binds himself as co-principal debtor does not thereby become a true co-debtor in the sense contended for by the applicants. The earlier decision in *Kilroe-Daley* v *Barclays National Bank Ltd* 1984 (4) SA 609 (A) is to the same effect.

[9] Zimbabwean authority is no different. In *Bakari* v *Total Zimbabwe (Private) Limited* (SC 21 of 2019) [2019] ZWSC 21, as summarized in subsequent Zimbabwean authority, the Supreme Court approved the orthodox statement that a suretyship involves three distinct parties and rests on the identity of the creditor, principal debtor, and surety, together with the nature and amount of the principal debt. In *Chipango and Anor* v *CBZ Bank Limited* (235 of 2025) [2025] ZWHHC 235, the High Court further emphasized that a suretyship relationship cannot arise merely from a clause in the principal agreement; there must be a separate deed or separate legally cognizable undertaking by which the surety binds herself personally.

[10] The present affidavits do not carry the applicants where they wish to go. At the highest, they may amount to unilateral statements of willingness to have property used as collateral. They were not sued upon as separate deeds of suretyship. They were not pleaded as a contract concluded between the applicants and each respondent on identified terms. They contain no proper machinery of enforcement, no renunciation clauses, no distinct stipulation

of the extent and incidents of personal liability, and no judgment exists on them. For this Court now to declare that the respondents thereby became co-principal debtors would be to convert ambiguous affidavits into a new cause of action and then into a concluded judgment, all in one step. Our procedural law does not permit such compression.

[11] But the matter goes still deeper. Even if the respondents had undertaken a personal obligation to pay if Mutandwa defaulted, that would not of itself create a real security right over their immovable property. Personal liability and real security are distinct juridical phenomena. One may sue a surety personally and, upon obtaining judgment, execute against that surety's assets in the ordinary course. That is not the same thing as saying that immovable property has been specially hypothecated as security. The applicants seek the latter, not the former.

[12] Under the Deeds Registries Act [*Chapter 20:05*], a mortgage bond over immovable property is executed in the presence of, and attested by, the Registrar. The Act also makes plain that personal rights in respect of immovable property are not registrable, and that no transfer of land may be passed as security for a debt except by way of mortgage. Our law thus insists on publicity, formality, and registration where a real security right over land is to come into existence. Those requirements are not ornamental. They protect owners, third parties, and the integrity of the land register.

[13] Comparable South African authority states the same principle in language that I find persuasive. In *Balduzzi* v *Rajah* [2014] ZAGPJHC 209, citing *Registrar of Deeds (Transvaal)* v *Ferreira Deep Ltd* 1930 AD 164 and *Lief NO* v *Dettmann* 1964 (2) SA 252 (A), the Court reiterated that an agreement to hypothecate immovable property creates only a personal right until registration; only upon registration does the real right of mortgage arise. In *Nhlapo* v *Nhlapo* [2013] ZAFSHC 59, the Court likewise held that a mortgage bond confers a real right on the mortgagee only upon registration in the deeds office.

[14] The respondents' affidavits did not pass a mortgage bond. They were not registrable instruments. They were not attested by the Registrar of Deeds. They did not subtract from dominium by registration. They therefore did not create a real right of security over the respondents' undivided shares. At most, they could found a personal claim to compel the respondents, if the law and facts otherwise allowed, to do that which they said they would do. But that is not the relief sought, and I express no concluded view on whether such a personal claim would succeed. I hold only that the affidavits did not, without more, create executable collateral *in rem*.

[15] This conclusion is strongly reinforced by Zimbabwean authority on jointly owned immovable property. In *Ishemunyoro (nee Mandidewa)* v *Ishemunyoro* [2019] ZWSC 14, the Supreme Court held that a writ of execution is enforceable only against the property of the judgment debtor, not the whole of jointly owned property, and reaffirmed that it is "inconceivable" that the innocent co-owner's share be sold "without *causa*." The Court also observed that where the husband had bound himself as surety and co-principal debtor, the deed did not itself show that the matrimonial home had been pledged as security; indeed, the Court referred to the absence of a surety mortgage bond. Those observations map closely onto the present case.

[16] The sheriff's present position is therefore correct in law. Execution may proceed only against Mutandwa's undivided share, being the share of the judgment debtor. Rule 69(5) of the High Court Rules, 2021 itself is framed in terms of executing against the immovable property "of any judgment debtor." The rule does not authorize execution against the immovable property of persons who are not judgment debtors merely because a creditor believes their property morally or informally stands as security.

[17] I turn to the argument that the Court can solve the problem by declaratory order. The short answer is that a declarator cannot be used to evade substantive law. Where the law says a mortgage over land arises by registration, a court cannot, by declaration, deem an affidavit to be a registered mortgage bond. Where the law says a person becomes liable on a suretyship by a cognizable contractual undertaking and thereafter by judgment if liability is contested, a court cannot, by declaration, convert a non-party to prior litigation into a judgment debtor. Section 14 is a remedial gateway, not an alchemical device.

[18] The applicants submitted, in effect, that because the respondents voluntarily expressed consent, justice requires the Court to hold them to it. There is force in the moral intuition, but the law is not moved by intuition alone. The legal order has long provided orthodox methods of securing debts. Personal rights may be ceded; incorporeals may be assigned; immovable property may be specially hypothecated by mortgage bond; and sureties may be bound by proper instruments and sued in the ordinary way. Zimbabwean authority emphasizes that cession may be informal, which only underlines that the law differentiates carefully between the transfer of personal rights and the constitution of real security over land. This application ignores those distinctions.

[19] Academic commentary supports the same caution. Kawadza, writing specifically on Zimbabwean surety law and comparing English and South African experience, argues for clearer regulation precisely because informal or relational undertakings can generate overreach and unfairness. See: Kawadza H, "Reconsidering 'emotionally transmitted debt' in Zimbabwe and proposals for the reform of surety law based on English and South African experiences" (2017) De Jure 194-201. South African scholarship likewise treats suretyship as an accessory undertaking and limited real rights as creatures of recognized constitutive acts, especially publicity and registration in the immovable-property field. The policy behind those formalities is commercial certainty, not formalism for its own sake. See: Goetsch J, "Repackaging the General Prejudice Principle in Suretyship Agreements as a Breach of Contract under South African Law" [2023] PER 18; and Pienar G, "The Effect of the Original Acquisition of Ownership of Immovable Property on Existing Limited Real Rights" [2015] PER 74.

[20] I therefore hold as follows. First, the first and second respondents did not become parties to, or debtors under, the provisional-sentence judgment by reason only of their affidavits. Second, the affidavits do not, on these papers, constitute the respondents as co-principal debtors in a manner entitling the applicants to execute upon the existing judgment against them. Third, the affidavits did not create a real security right over the respondents' undivided shares in immovable property because no mortgage bond was passed or registered. Fourth, while this Court has jurisdiction in principle to grant declaratory and consequential relief under s 14 of the High Court Act, it is not a proper exercise of that jurisdiction to declare into existence a security right or executable status that the substantive law does not recognize on the facts before the Court.

[21] For the avoidance of doubt, nothing in this judgment prevents the applicants, if so advised, from instituting competent proceedings founded on any personal cause of action they are able properly to plead against the respondents. Nor does this judgment affect the applicants' existing right to pursue execution against Mutandwa's undivided share as the property of the judgment debtor. What it denies is only the proposition that the respondents' shares may be foreclosed and sold under the existing judgment and on the strength of the present affidavits alone.

[22] In the result, the application cannot succeed. Because the matter was unopposed and raises genuinely novel questions, I do not consider a punitive costs order appropriate. An order of no costs is, in my view, fair.

[23] It is accordingly ordered that:

(a) The application for a declaratory order be and is hereby dismissed.

(b) It is declared, for the avoidance of doubt, that the judgment granted under case number HCH 4171/24 is executable only against the property of the judgment debtor, Leighton Innocent Mutandwa, including his undivided share in Stand 5893 Masvingo Township of Fort Victoria Township, in accordance with the law.

(c) No order as to costs.

MAMBARA J…….

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